

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

COURT REPORTERS WILL NO LONGER BE PROVIDED FOR TRIAL AND OTHER HEARINGS WHERE LIVE EVIDENCE WILL BE PRESENTED. IF A PARTY DESIRES A COURT REPORTER FOR ANY HEARING INCLUDING, BUT NOT LIMITED TO, LAW AND MOTION MATTERS, EX PARTE MATTERS AND CASE MANAGEMENT CONFERENCES, IT WILL BE THE RESPONSIBILITY OF THAT PARTY TO PROVIDE ITS OWN COURT REPORTER. PARTIES MUST COMPLY WITH THE COURT'S POLICY ON THE USE OF PRO TEMPORE COURT REPORTERS WHICH CAN BE FOUND ON THE COURT'S WEBSITE AT:

[http://www.occourts.org/media/pdf/7-25-2014 Privately Retained Court Reporter Policy.pdf](http://www.occourts.org/media/pdf/7-25-2014%20Privately%20Retained%20Court%20Reporter%20Policy.pdf)

The Orange County Superior Court has implemented administrative orders, policies, and procedures noted on the Court's website to address the limitations and restrictions presented during the COVID-19 pandemic at Civil Covid-19. Due to the fluid nature of this crisis, you are encouraged to frequently check the Court's website at <https://www.occourts.org> for the most up to date information relating to Civil Operations.

Unless otherwise ordered by the Court, all Unlimited and Complex proceedings may be conducted via Zoom or in person. On the date of your hearing click the Department C20 Link to begin the remote online check in/Zoom appearance process:

<https://occourtsapp.occourts.org/aci/checkin-results?dept=C20>

Date: June 25, 2026

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1.	Cicale v. LoanDepot.com, LLC 26-1544409	Before the Court is the unopposed application of attorney John Doran to appear in this matter pro hac vice as counsel for defendant LoanDepot.com, LLC. Mr. Doran has complied with the requirements set forth <i>in California Rules of Court, Rule 9.40</i>. Accordingly, the application is GRANTED.

		<i>Counsel for LoanDepot.com, LLC is ordered to give notice of this ruling.</i>
2.	Koc v. Unal 24-1450686	Pro per defendant Abdullah Unal's ("Defendant") unopposed Motion to Set Aside Default and Default Judgment is DENIED without prejudice. Defendant brings the motion pursuant to <i>Civ. Proc. Code § 473(b)</i>, which requires the responsive pleading (i.e. answer, demurrer, motion to strike, etc.) to be filed along with the motion. No such pleading was filed. There is also no evidence the motion was ever served on plaintiff Mesut Koc ("Plaintiff") as required by the code. (<i>Civ. Proc. Code § 1005.</i>) Based on the above, the motion is denied without prejudice to correcting the issues and refiling. The court warns Defendant that a renewed motion must be filed within six months of entry of judgment. (<i>Civ. Proc. Code § 473(b).</i>) Judgment was entered on March 25, 2026. (ROA 47.) <i>The Clerk of the Court will give notice of the ruling.</i>
3.	Reed v. Blucker 26-1554798	Before the Court is a special motion to strike pursuant to <i>Code of Civil Procedure section 425.16</i> filed by defendant James Blucker (Defendant) as to the complaint filed by plaintiff Curtis Reed (Plaintiff). For the reasons set forth below, the motion is GRANTED. Defendant's request for judicial notice is GRANTED. <i>Civil Procedure Code section 425.16(b)</i> provides: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (<i>Code Civ. Proc. § 425.16, subd. (b).</i>) In ruling on a special motion to strike under Section 425.16, the court must follow a two-step process. (<i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376, 384-385.) First, the court determines if the party moving to strike a cause of action has shown that the cause of action arises from an act in furtherance of the moving party's right of petition or free speech. (<i>Ibid.</i>) If the moving party makes the showing required in the first step, the court then determines whether the non-moving party has demonstrated a probability of prevailing on the claim. (<i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 88.) <u>Protected Activity</u>. Statements and writings made during judicial proceedings are protected by the anti-SLAPP statute. (<i>Code of Civ. Proc. § 425.16, subd. (e)(1).</i>) Here, Defendant met its burden showing this action arises out of protected activity. Plaintiff's complaint arises out of Defendant's communications during judicial proceedings while